

DANIELLE IRELAND-IMHOF
CLERK
PASSAIC COUNTY
New Jersey

INSTRUMENT NUMBER

2024029775

RECORDED ON

Sep 23, 2024

9:43:14 AM

BOOK:M19065 PAGE:172

Total Pages: 8

Recording Requested By/Return To:
CROSSCOUNTRY MORTGAGE
999 TECH ROW, #200
MADISON HEIGHTS, MICHIGAN
48071

NJ PRESERVATION ACCOUNT \$30.00
RECORDING FEES - \$50.00
RECORDER OF DEEDS
HOMELESSNESS TRUST FUND \$2.00
- CODE BLUE INITIATIVE
HOMELESSNESS TRUST FUND \$3.00
TOTAL PAID \$85.00
INV: 1605026 USER: ML

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Document Date: 09-09-2024

PARTIAL CLAIM MORTGAGE

FHA Case Number 353-0573314703

Property Address: 379 -381 5TH AVE, PATERSON, NEW JERSEY 07514

ORIGINAL MORTGAGE AMOUNT: \$369,189.00

THIS SUBORDINATE MORTGAGE ("Security Instrument") is given on the date of execution. The Mortgagor is CLARA L ROSARIO, SINGLE, whose address is 379 -381 5TH AVE, PATERSON, NEW JERSEY 07514 ("Borrower"). This Security Instrument is given to the Secretary of Housing and Urban Development, and whose address is 451 7th Street S.W., Washington, DC 20410 ("Lender" or "Mortgagee"). Borrower owes Lender the principal sum of EIGHTY-ONE THOUSAND SEVEN HUNDRED FORTY-EIGHT AND 43/100THS Dollars (U.S. \$81,748.43).

Notwithstanding the foregoing or any other provisions contained herein, if personal liability with respect to any amounts payable under the primary Note has been discharged in bankruptcy, Borrower and Lender understand and agree that nothing contained herein with respect to any amounts payable under this Note, shall be construed to impose personal liability to repay any such obligation in violation of such discharge. Borrower and Lender further understand and agree that to the extent that such personal liability with respect to any amounts payable under the primary Note has been discharged in bankruptcy, Borrower is entering into this Note voluntarily for the benefits to be obtained thereby and not as an affirmation of the debt evidenced by the primary Note, and that this Note, or any actions taken by Lender in relation to this Note, does not constitute a demand for payment or any attempt to collect any such previously discharged obligation.



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This debt is evidenced by Borrower's note dated the same date as this Security Instrument ("Note"), which provides for the full debt, if not paid earlier, due and payable on SEPTEMBER 01, 2054.

This Security Instrument secures to Lender: (a) the repayment of the debt evidenced by the Note, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, advanced under Paragraph 7 to protect the security of this Security Instrument; and (c) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower does hereby mortgage, warrant, grant and convey to Lender, with the power of sale the following described property located in PASSAIC County, NEW JERSEY:

LEGAL DESCRIPTION:

THE LAND IS DESCRIBED AS FOLLOWS: ALL THAT CERTAIN TRACT OR PARCEL OF LAND, SITUATED, LYING AND BEING IN THE CITY OF PATERSON, COUNTY OF PASSAIC, STATE OF NEW JERSEY, MORE PARTICULARLY DESCRIBED AS FOLLOWS: BEGINNING AT THE INTERSECTION OF THE NORTHERLY LINE OF FIFTH AVENUE, 60.00 FEET WIDE AND THE WESTERLY LINE OF EAST 25TH STREET, 60.00 FEET WIDE, AND RUNNING, THENCE; 1) ALONG SAID WESTERLY LINE OF EAST 25TH STREET, NORTH 14 DEGREES 00 MINUTES EAST 100.00 FEET TO A POINT, THENCE; 2) NORTH 76 DEGREES 00 MINUTES WEST 40.00 FEET TO A POINT, THENCE; 3) SOUTH 14 DEGREES 00 MINUTES WEST 100.00 FEET TO A POINT ON THE AFOREMENTIONED NORTHERLY LINE OF FIFTH AVENUE, THENCE; 4) ALONG SAID NORTHERLY LINE OF FIFTH AVENUE, SOUTH 76 DEGREES 00 MINUTES EAST 40.00 FEET TO THE POINT OR PLACE OF BEGINNING. FOR INFORMATIONAL PURPOSES ONLY: BEING LOT: 23, BLOCK: 2414; TAX MAP OF THE CITY OF PATERSON.

Tax Parcel No.:

BLOCK 2414 LOT 23

which has the address of 379 -381 5TH AVE, PATERSON, NEW JERSEY 07514 ("Property Address").

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances, and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing is referred to in this Security Instrument as the "Property."

BORROWER COVENANTS that Borrower is lawfully seized of the estate hereby conveyed and has the right to mortgage, grant and convey the Property and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property

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against all claims and demands, subject to any encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

Borrower and Lender covenant and agree as follows:

UNIFORM COVENANTS.

1. Payment of Principal. Borrower shall pay the principal of the debt evidenced by the Note when due.

2. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time of payment of the sums secured by this Security Instrument granted by Lender to Borrower, or any successor in interest of Borrower, shall not operate to release the liability of the original Borrower or Borrower's successor in interest. Lender shall not be required to commence proceedings against any successor in interest or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy under the Note or this Security Instrument shall not be a waiver of or preclude the exercise of any right or remedy.

3. Successors and Assigns Bound; Joint and Several Liability; Co-signers. The covenants and agreements of this Security Instrument shall bind and benefit the successors and assigns of Lender and Borrower. Borrower's covenants and agreements shall be joint and several. Any Borrower who co-signs this Security Instrument but does not execute the Note: (a) is co-signing this Security Instrument only to mortgage, grant and convey that Borrower's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower may agree to extend, modify, forbear or make any accommodations with regard to the term of this Security Instrument or the Note without that Borrower's consent.

4. Notices. Any notice to Borrower provided for in this Security Instrument shall be given by delivering it or by mailing it by first class mail unless applicable law requires use of another method. The notice shall be directed to the Property Address or any other address Borrower designates by notice to Lender. Any notice to Lender shall be given by first class mail to: U.S. Department of Housing and Urban Development, Attention: Single Family Notes Branch, 451 7th Street S.W.,



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Washington, DC 20410 or any address Lender designates by notice to Borrower. Any notice provided for in this Security Instrument shall be deemed to have been given to Borrower or Lender when given as provided in this paragraph.

5. Governing Law; Severability. This Security Instrument shall be governed by Federal law and the law of the jurisdiction in which the Property is located. If any provision or clause of this Security Instrument or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Security Instrument or the Note that can be given effect without the conflicting provision. To this end, the provisions of this Security Instrument and the Note are declared to be severable.

6. Borrower's Copy. Borrower shall be given one conformed copy of the Note and of this Security Instrument.

NON-UNIFORM COVENANTS.

Borrower and Lender further covenant and agree as follows:

7. Remedies.

(a) Notice of Default. Lender will give a notice of default to Borrower following Borrower's breach of any covenant or agreement in this Security Instrument. The notice will specify, in addition to any information required by applicable law: (i) the default; (ii) the action required to cure the default; (iii) that failure to cure the default on or before the date specified in the notice may result in foreclosure by judicial proceeding and sale of the Property; (iv) Borrower's right to deny in the foreclosure proceeding the existence of a default or to assert any other defense of Borrower to foreclosure; and (v) any other disclosure required under the Fair Foreclosure Act, codified at §§ 2A:50-53 *et seq.* of the New Jersey Statutes, or other applicable law.

(b) Foreclosure; Expenses. If the default is not cured on or before the date specified in the notice, Lender may require immediate payment in full of all sums secured by this Security Instrument without further demand and may foreclose this Security Instrument by judicial proceeding or in accordance with paragraph 7(c). To the extent permitted by Rules of Court or allowed by applicable law, Lender will be entitled to collect all expenses incurred in pursuing its remedies, including, but not limited to: (i) attorneys' fees and costs; and (ii) other fees incurred to protect Lender's interest in the Property and/or rights under this Security Instrument.



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(c) Secretary's Remedies. Notwithstanding the foregoing paragraphs (a)-(b), if the Lender's interest in this Security Instrument is held by the Secretary and the Secretary requires immediate payment in full under Paragraph 4 of the Note, the Secretary may invoke the nonjudicial power of sale provided in the Single Family Mortgage Foreclosure Act of 1994 ("Act") (12 U.S.C. § 3751 et seq.) by requesting a foreclosure commissioner designated under the Act to commence foreclosure and to sell the Property, as provided in the Act. Nothing in the preceding sentence will deprive the Secretary of any rights otherwise available to a Lender under this section 7 or applicable law.

8. Release. Upon payment of all sums secured by this Security Instrument, Lender will cancel this Security Instrument. Borrower will pay any recordation costs associated with such release. Lender may charge Borrower a fee for releasing this Security Instrument, but only if the fee is paid to a third party for services rendered and the charging of the fee is permitted under applicable law.

BY SIGNING BELOW, Borrower accepts and agrees to the terms contained in this Security Instrument and in any rider(s) signed by Borrower and recorded with it.

Clara L Rosario
Borrower - **CLARA L ROSARIO**

Date: 9/14/24

CERTIFICATE OF ACKNOWLEDGMENT

State of **NEW JERSEY**

County of Passaic
Enter County Here

On the 9/14 day of September, 2024
before me, a Notary Public of the State and County aforesaid personally appeared **CLARA L ROSARIO**, who I am satisfied is/are the Person(s) named in and who executed the within instrument; and he/she/they signed, sealed and delivered the same as his/her/their act and deed for the uses and purposes therein expressed.

(SEAL) **MARITZA SCOTT**
Notary Public, State of New Jersey
My Commission Expires
March 16, 2028

Maritza Scott
Notary Public

My Commission expires: 3/16/2028

[] This notarial act involved the use of communication technology.



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